

Instructor: Date:

Learner: Regional Branch:

Program: Center:

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Let's Start!

A software license agreement, what is it for?



Learning Outcome:

Understand information about people's backgrounds in spoken or written documents.

Participate in the improvement of IT contracts, establishing technical clauses that respond to the needs of the negotiating agents, based on current laws on contracting.

Can Do Statements:

- I can give a simple definition to software license agreement.
- I can talk about the permissions given to the customer through a software license agreement.
- I can discuss various forms of software license agreements.

Ask your partner:

- What is copyright? Name some examples.
- Have you heard about license agreements before? In which cases?





Let's Explore!

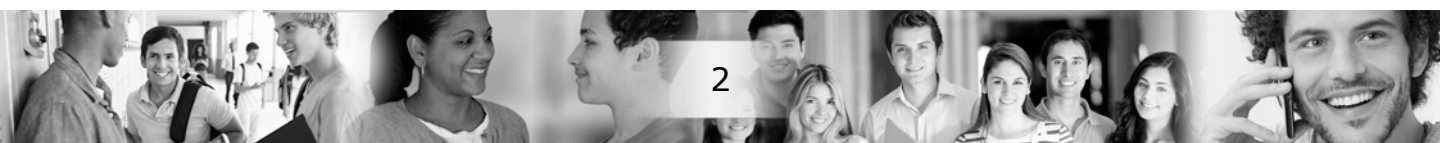
Two business partners are discussing the importance of having a software license* agreement.

* A "license" is a legal permission to use a product or perform an activity.



Instructions: Read the text below.

- Will:** So, now that we have everything, we need to decide the kind of software we're going to be using.
- Phil:** Let's just download it from the internet. I know a few websites that can do the trick.
- Will:** What? Are you out of your mind? We need to sign a software license agreement. A kind of legal contract, you know.
- Phil:** Really? Why?
- Will:** Well, for starters, our business is all about design, right? And if we want to be deemed as a serious company, I think we need to purchase the proper and legal software. I don't think an inexpensive license offers what we need.
- Phil:** Neither do I.
- Will:** We need to procure a reliable software from a software vendor. For that, a software license agreement where both the vendor's and our rights and obligations are specified, is mandatory. I think we cannot take any chances with this kind of things.
- Phil:** So do I. But aren't those licenses too restrictive?
- Will:** Well, they do give the customer limited permission to use the licensed software and they also impose some obligation on the customers. However, they also establish the software vendor's limited promises regarding the availability of certain services and the quality of the software. They also allocate the risk between the software vendor and the licensee.
- Phil:** In other words, we're more protected with a software license agreement.
- Will:** Exactly. And this kind of license can take various forms. The cheap commercial off-the-shelf software administered by a non-negotiable standard form agreement which is accepted by the customer before or during the software installation process; or the expensive software which comes with an agreement subject to negotiation by the software vendor and the customer.





Let's Practice!

Important Concepts When Talking About the Licenses

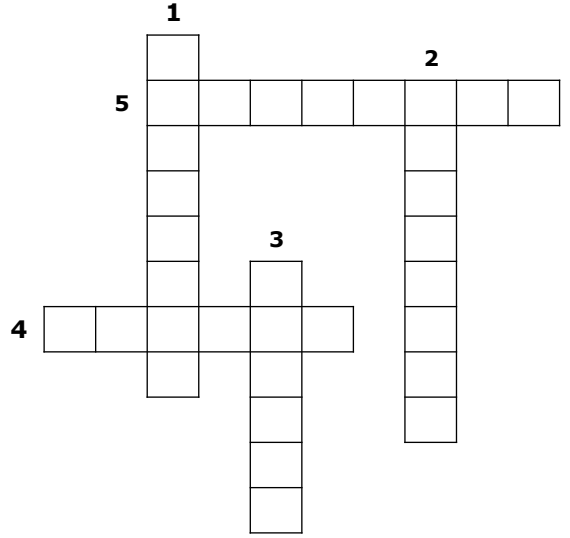
Instructions: Find the missing words for each sentence.

Across

- 4. And if we want to be **d _ _ _ d** as a serious company, I think we need to purchase proper and legal software.
- 5. The risk is allocated between the software vendor and the **_ _ ce _ _ _ e**.

Down

- 1. They also **a _ _ o _ _ e** the risk between the software vendor and the licensee.
- 2. The cheap commercial **o _ t _ e _ _ l f s _ f _ w _ r _** administered by a non-negotiable standard form agreement
- 3. However, they also establish the software **v _ _ _ r ' s** limited promises regarding the availability of certain services and the quality of the software.



Let's Practice!

Permissions Given to the Customer When Acquiring a License

Instructions: Classify the sentences by writing the number of the sentence in the correct category.

- Will:**

I think we cannot take any chances with this kind of things.
- Phil:**

_____.
- Will:**

I don't think they impose some obligation on the customers.
- Phil:**

_____.
- Joseph:**

you're wrong! It does.
- Will:**

Well, I consider they do give the customer limited permission to use the licensed software
- Phil:**

_____.
- Will:**

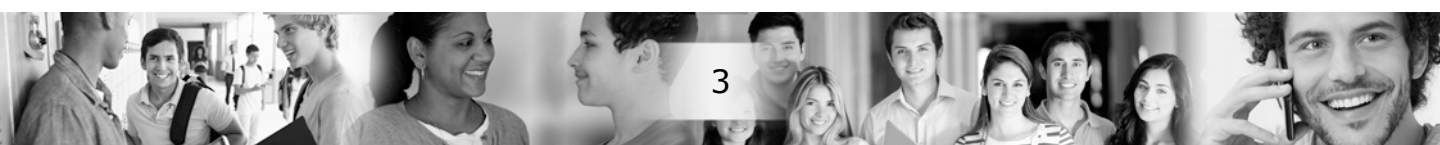
I consider the license establish the software vendor's limited promises regarding the availability of certain services and the quality of the software.
- Phil:**

_____.
- Will:**

I don't think an inexpensive license offers what we need.
- Phil:**

_____.

Responses with Neither	Responses with So





Extension Activity

Examples of Software License Agreement

Instructions: Complete the following steps. Fill in the Self-Assessment.

- Look for some examples of software license agreements.
- Describe them. Talk about the type of software license agreement and the given permissions to customers.
- Write a complete description about each of the examples you found.
- Share your description with your classmates.

Self-Assessment

Yes

No

- I look for some examples of software license agreement. ☐ Yes ☐ No
- I describe them in detail. ☐ Yes ☐ No
- I write a description about each of the examples. ☐ Yes ☐ No
- I share the description with my classmates. ☐ Yes ☐ No



Target Words

- **off-the-shelf software** (noun): software used at home or at school.
e.g. The cheap commercial off-the-shelf software administered by a non-negotiable standard form agreement which is accepted by the customer before or during the software installation process.
- **procure** (verb): to obtain; to acquire.
e.g. We need to procure a reliable software from a software vendor.
- **vendor** (noun): provider of a product or service.
e.g. However, they also establish the software vendor's limited promises regarding the availability of certain services and the quality of the software.
- **allocate** (verb): to designate.
e.g. They also allocate the risk between the software vendor and the licensee.
- **deem** (verb): to consider or judge.
e.g. And if we want to be deemed as a serious company, I think we need to purchase proper and legal software.
- **licensee** (noun): someone to whom a license is granted.
e.g. They also allocate the risk between the software vendor and the licensee.



Learning Points

Responses with So and Neither

So and **neither** are two words that along with the appropriate auxiliary verb can help us show agreement or disagreement with what another person says or thinks.

When using the simple present tense, if you agree with what a person says you can use **so + auxiliary verb + subject**.

Examples:

A: *I'm interested in acquiring a new management system for the company.*

B: **So am I.**

A: *I think this Software License Agreement is necessary.*

B: **So do I.**

However, if you agree with a negative statement about what another says or does, you can use **neither + auxiliary verb + subject**.

A: *I'm not quite sure of buying this software.*

B: **Neither am I.**

A: *That software license it's too expensive and limited, I don't like it.*

B: **Neither do I.**

Examples

- *I don't think an inexpensive license offers what we need. Neither do I.*
- *I think we cannot take any chances with this kind of things. So do I.*

Types of Software Licensing

Before using any kind of software, the user needs to understand the kind of **software licensing** they have to accept. This kind of license not only protects the manufacturers and producers but it also informs the end user about how software can be used and what they can or cannot do.

Depending on the needs and the purchasing power of the end user, there are different kinds of software licensing that can be grouped into two big categories Public Domain Software and Commercial Software:





Learning Points

Public Domain Software	
A software that has no owner of the intellectual property. It can be edited, changed, copied, and distributed with no restrictions.	
Freeware	Software available with no cost and has an optional donation fee. Fully functional for an unlimited time.
Open Source	This software comes with permission for anyone to copy, use and distribute it with or without modifications.

Commercial Software	
This software is also known as "payware", some sort of payment is required before accessing this kind of software.	
Shareware	A software distributed for free or on a trial basis. It can have a combination of restrictions depending on convenience, functionality and availability.
Limited License (LL)	A software intended for the non-commercial use of a program, and for several users, but limited to a certain number at the same time.
Unlimited Site License (USL)	Software with no limit in the number of copies that can be distributed. It is available to groups of people at a time.
Volume Purchase Agreement (VPA)	Licenses with no set amount of copies to be distributed. This software is sold at a low price based on the amount of distribution, usually intended for large companies.